



US0D1093158S

(12) **United States Design Patent**
Hartford

(10) **Patent No.:** **US D1,093,158 S**

(45) **Date of Patent:** **** Sep. 16, 2025**

(54) **FOOD PACKAGE WITH SURFACE INDICIA**

(71) Applicant: **Kraft Foods Group Brands LLC**,
Chicago, IL (US)

(72) Inventor: **Jennifer Brooke Hartford**, Glen
Ridge, NJ (US)

(73) Assignee: **Kraft Foods Group Brands LLC**,
Chicago, IL (US)

(**) Term: **15 Years**

(21) Appl. No.: **29/856,147**

(22) Filed: **Oct. 11, 2022**

(51) **LOC (15) Cl.** **09-01**

(52) **U.S. Cl.**
USPC **D9/643**

(58) **Field of Classification Search**

USPC D9/550, 600, 643, 682-694, 516, 430,
D9/432, 499, 733, 414, 431, 433, 434,
D9/456, 737, 754, 756, 758, 759, 760;
D20/23, 10, 22, 27, 40
CPC B65D 2203/02; B65D 2203/00;
B65D 23/14; B65D 83/38; B65D 1/40;
B65D 5/4212; B65D 33/004; G09F
2003/0251; G09F 2003/0272; G09F
2003/0273; G09F 2023/0025; G09F
2023/0091

See application file for complete search history.

(56) **References Cited**

U.S. PATENT DOCUMENTS

D536,988 S 2/2007 Kusumi
D593,410 S 6/2009 Schwartz
D627,569 S 11/2010 Seum
D634,621 S 3/2011 Edwards
D648,739 S 11/2011 Maitlen
D650,273 S 12/2011 Tekulve
D656,016 S 3/2012 Hablutzel
D678,060 S * 3/2013 Vanden Boom D9/434

D680,863 S 4/2013 Thompson
D683,218 S 5/2013 Thompson
D699,119 S 2/2014 Fukuda
D764,913 S 8/2016 Hood
D772,072 S 11/2016 Klopp
D774,916 S 12/2016 Kwon
D774,917 S 12/2016 Kwon
D798,703 S 10/2017 Hainaut

(Continued)

OTHER PUBLICATIONS

Kraft Mac & Cheese Original_Amazon.ca, [date first available: Sep. 6, 2014], [date found online: Nov. 12, 2024], <https://www.amazon.ca/Kraft-Macaroni-Cheese-Pack-Five/dp/B00ORLROJQ> (Year: 2014).*

(Continued)

Primary Examiner — George J Ulsh

Assistant Examiner — Katherine E Morris

(74) *Attorney, Agent, or Firm* — Fitch, Even, Tabin & Flannery LLP

(57)

CLAIM

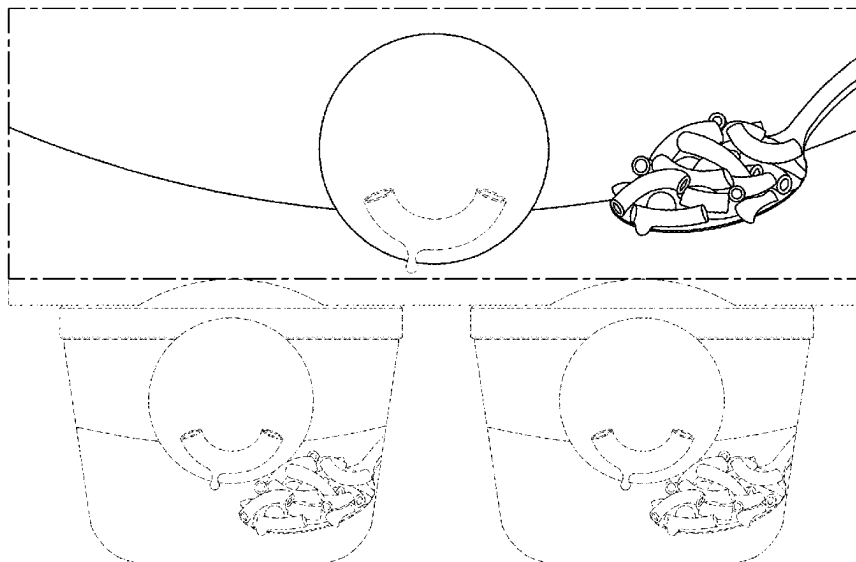
The ornamental design for a food package with surface indicia, as shown and described.

DESCRIPTION

FIG. 1 is a front elevation view of a food package with surface indicia in accordance with my new design; FIG. 2 is a rear elevation view thereof; FIG. 3 is a right side elevation view thereof; FIG. 4 is a left side elevation view thereof; FIG. 5 is a bottom elevation view thereof; and, FIG. 6 is a top plan view thereof.

The short dash-dash broken lines shown in the drawings are for the purpose of illustrating parts of the food package with surface indicia that form no part of the claimed design. The long dash-short dash broken lines represent the boundaries of the claim and form no part thereof.

1 Claim, 6 Drawing Sheets



(56)

References Cited**U.S. PATENT DOCUMENTS**

D830,165	S	10/2018	Thompson	
D830,846	S	10/2018	Song	
D836,451	S	12/2018	Song	
D845,140	S	4/2019	Ratajczak	
D859,171	S	9/2019	Lee	
D859,172	S	9/2019	Lee	
D876,218	S	2/2020	Thompson	
D922,877	S	6/2021	Kim	
D927,300	S	8/2021	Rana	
D928,611	S	8/2021	Murchison	
D961,401	S *	8/2022	Kwon	D9/707
D962,779	S *	9/2022	Ko	D9/623
D970,347	S	11/2022	Ko	
D972,409	S	12/2022	Lovis	
D973,482	S	12/2022	Kiefluk	
D974,171	S *	1/2023	Lowery	D9/432
D991,044	S *	7/2023	Kwon	D9/432
D991,791	S *	7/2023	Kwon	D9/432
D991,792	S *	7/2023	Kwon	D9/432
D993,039	S	7/2023	Gruzelier et al.	
D995,308	S	8/2023	Kwon	
D1,002,368	S	10/2023	Riffe	
D1,003,710	S	11/2023	Riffe	
D1,004,422	S	11/2023	Suzuki	
D1,015,162	S *	2/2024	Park	D9/711
D1,024,796	S	4/2024	Na	

OTHER PUBLICATIONS

Annie's Macaroni and Cheese Classic Cheddar. Amazon.ca, [date first available: Aug. 17, 2018], [date found online: Nov. 12, 2024], <https://www.amazon.ca/ANNIES-MACARONI-Artificial-Synthetic-Ingredients/dp/B07GL7CS7L> (Year: 2018).*

Kraft Dinner Original and Three Cheese Macaroni & Cheese Snack Cups Variety Pack. Amazon.ca, [date first available: Apr. 15, 2017], [date found online: Nov. 12, 2024], <https://www.amazon.ca/dp/B06XR9DKFY> (Year: 2017).*

Kraft Easy Mac Original Macaroni and Cheese Dinner. Amazon.ca, [date first available: Nov. 1, 2005], [date found online: Nov. 12, 2024], <https://www.amazon.ca/Kraft-Original-Macaroni-Microwaveable-Packets/dp/B005ECO3H0> (Year: 2005).*

Kraft Macaroni & Cheese Dinner. Amazon.ca, [date first available: May 15, 2015], [date found online: Nov. 12, 2024], <https://www.amazon.ca/Kraft-Macaroni-Cheese-Dinner-7-25/dp/B00BU5W15Q> (Year: 2015).*

Kraft Macaroni & Cheese Dinner Package—Spirals, presently believed to be publicly available at least before Oct. 11, 2022.

Kraft Macaroni & Cheese Dinner Package—Original Flavor, presently believed to be publicly available at least before Oct. 11, 2022.

Kraft Macaroni & Cheese Dinner Package—The Cheesiest, presently believed to be publicly available at least before Oct. 11, 2022.

Kraft Macaroni & Cheese Dinner Package—Three Cheese with Mini-Shell Pasta, presently believed to be publicly available at least before Oct. 11, 2022.

Kraft Macaroni & Cheese Dinner Package—Smmmile, It's The Cheesiest—Original, presently believed to be publicly available at least before Oct. 11, 2022.

Kraft Macaroni & Cheese Dinner Package 1—Original, 4 pack, presently believed to be publicly available at least before Oct. 11, 2022.

Kraft Macaroni & Cheese Dinner Package 2—Cheesy Made Easy—4 pack, presently believed to be publicly available at least before Oct. 11, 2022.

Kraft Macaroni & Cheese Dinner Package 3—Original Flavor, presently believed to be publicly available at least before Oct. 11, 2022.

Kraft Original: Announced [Sep. 20, 2023; online]. Retrieved [Dec. 12, 2023]. URL: <https://www.amazon.com/Kraft-Original-Flavor-Macaroni-Cheese/dp/B000PZZZQG> (Year: 2023).

Annie's Macaroni: Announced [Jun. 30, 2012; online]. Retrieved [Dec. 12, 2023]. URL: <https://www.amazon.com/dp/BOOOY26LUC> (Year: 2012).

Press Release: "Kraft Macaroni and Cheese is Changing Its Name and Iconic Blue Box Introducing . . . Kraft Mac & Cheese," available at <https://news.kraftheinzcompany.com/press-releases-details/2022/Kraft-Macaroni-and-Cheese-Is-Changing-Its-Name-and-Iconic-Blue-Box-Introducing-.Kraft-Mac-Cheese/default.aspx>, Jun. 22, 2022.

"Kraft Macaroni & Cheese gets a new look—and a new name," available at <https://www.bizjournals.com/bizwomen/news/latest-news/2022/06/kraft-macaroni-and-cheese-name-change.html>, Jun. 22, 2022.

"The New Kraft Mac & Cheese Box Will Make You Smile," available at <https://lovelypackage.com/the-new-kraft-mac-cheese-box/>, Jun. 28, 2022.

U.S. Trademark Registration No. 7430087, filed Aug. 25, 2022, by Kraft Foods Group Brands LLC.

Mike Snider, "On Mac and Cheese Day, a look at how Kraft's blue box became a pantry staple," USA Today, Jul. 14, 2024, available at URL: <https://www.usatoday.com/story/money/food/2024/07/14/mac-and-cheese-day-kraft-history/74372947007/>.

Jordan Valinsky, "Kraft Macaroni and Cheese is changing its name," CNN Business, Jun. 22, 2022, available at URL: <https://www.cnn.com/2022/06/22/business-food/kraft-mac-and-cheese-name/index.html>.

Michael Bartiromo, "Kraft Macaroni and Cheese is changing its name—yet again," Jun. 22, 2022, available at URL: https://thehill.com/homenews/nexstar_media_wire/3532564-kraft-macaroni-and-cheese-is-changing-its-name-yet-again/.

Jessica Botelho, "Kraft Macaroni and Cheese changing its name, logo for 1st time in 85 years," Jun. 22, 2022, available at URL: <https://kutv.com/news/offbeat/kraft-macaroni-and-cheese-changing-its-name-logo-for-1st-time-in-85-years-kraft-heinz-company-comfort-food-noodles-pasta-hungry-eat-recipes-milk-dairy-grocery-store-supply-chain>.

Kraft Macaroni and Cheese is Changing its Name: Announced (Jun. 22, 2022; online). Site Visited (Apr. 18, 2025). Available from URL: <https://www.today.com/food/trends/kraft-macaroni-and-cheese-changing-name-rcna34824>.

* cited by examiner

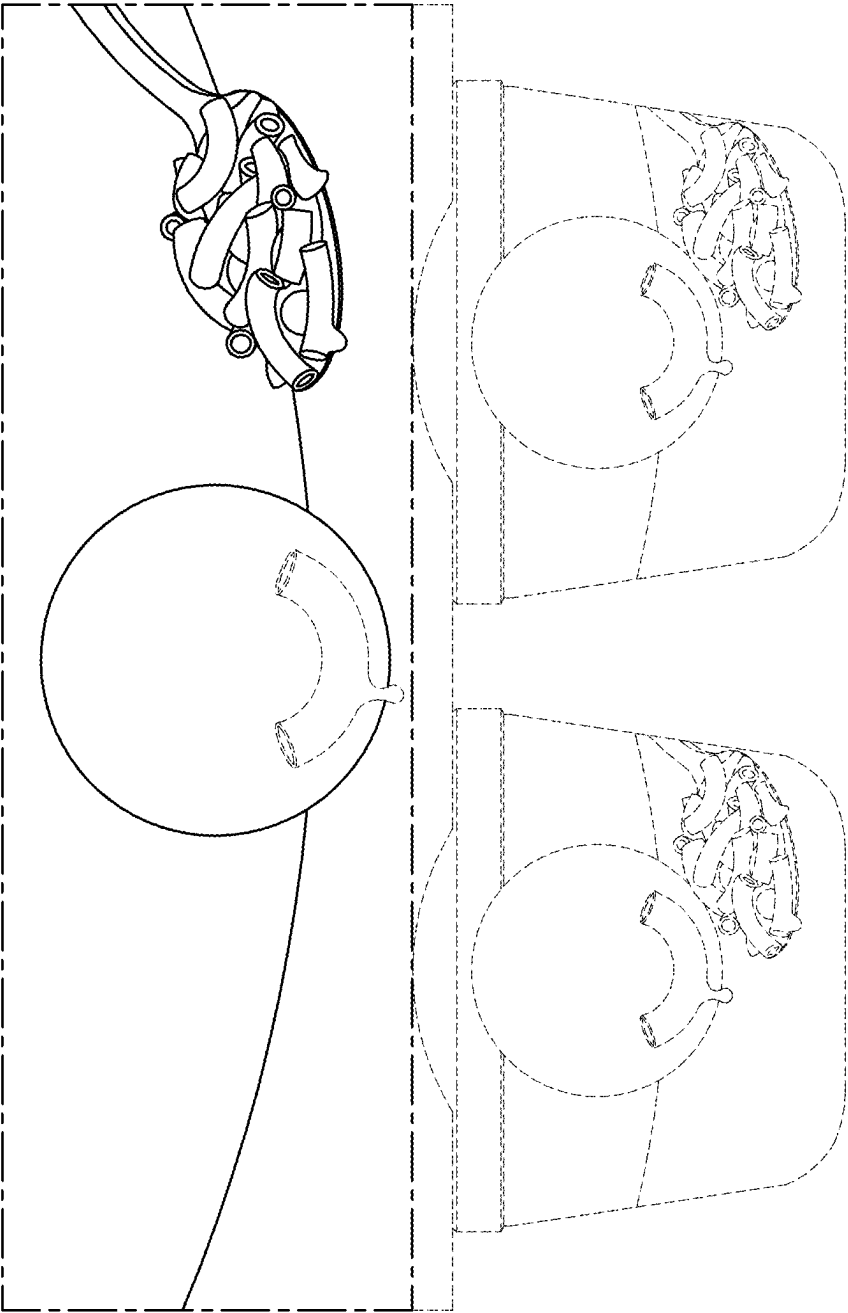


FIG. 1

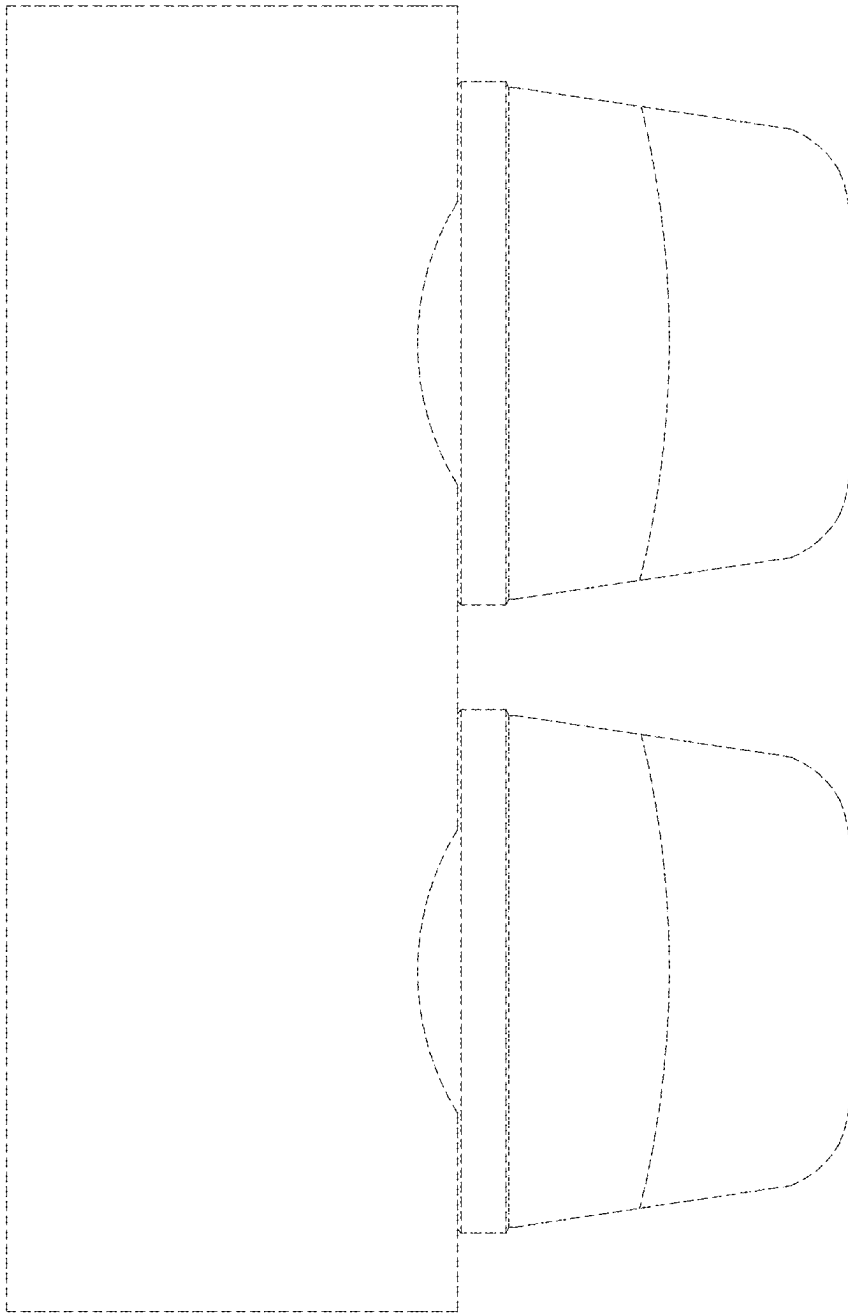


FIG. 2

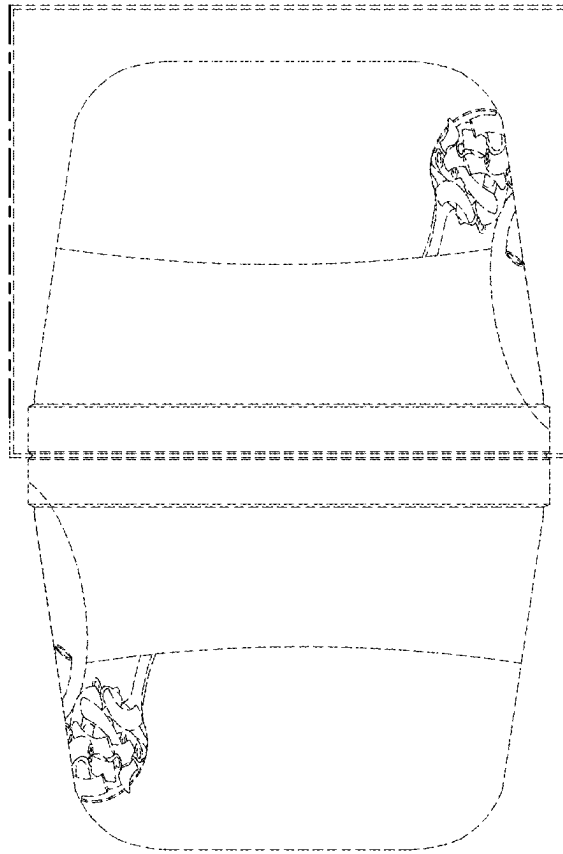


FIG. 3

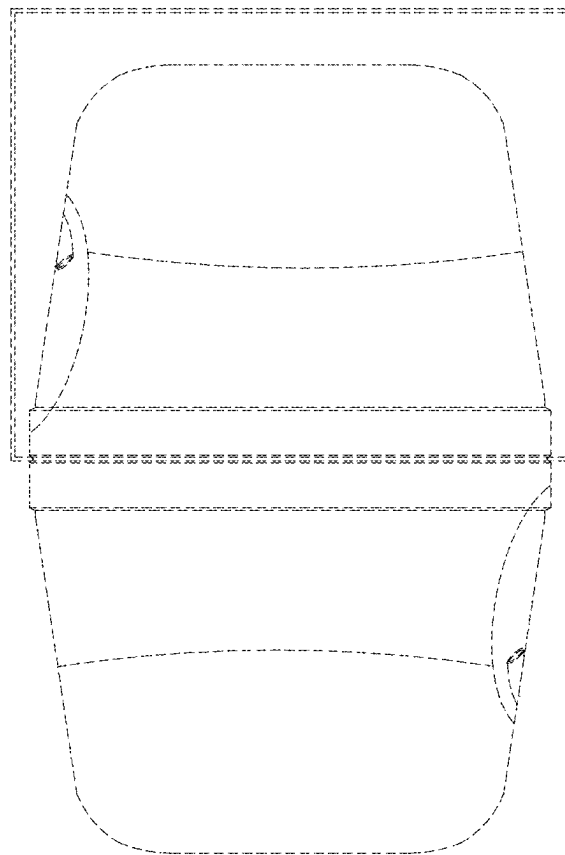


FIG. 4

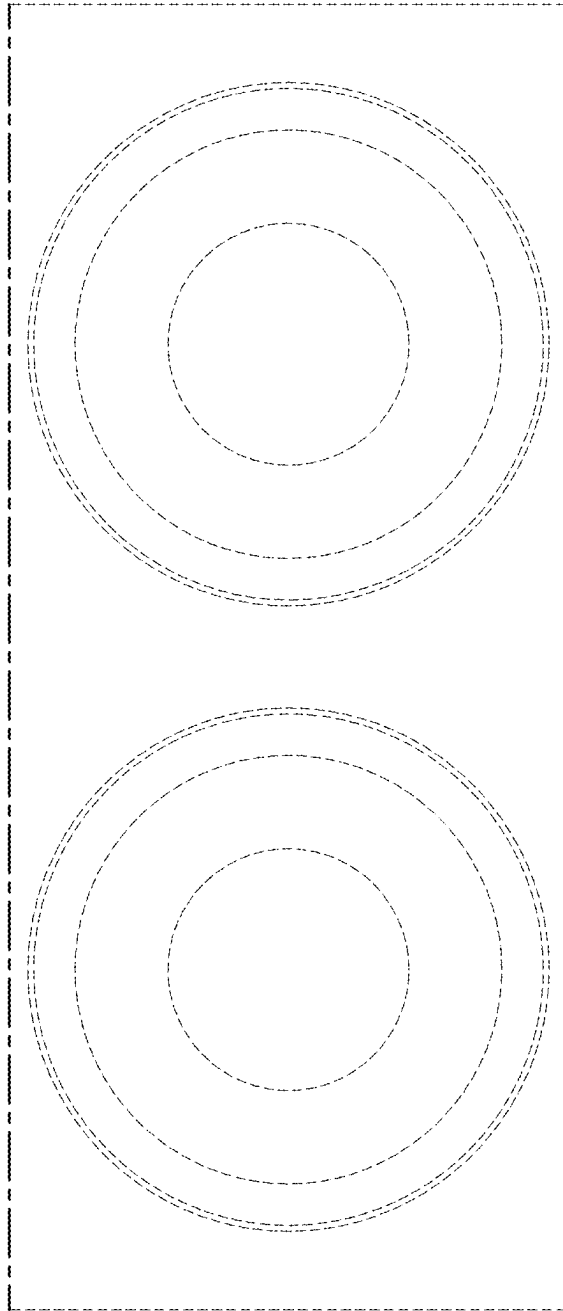


FIG. 5

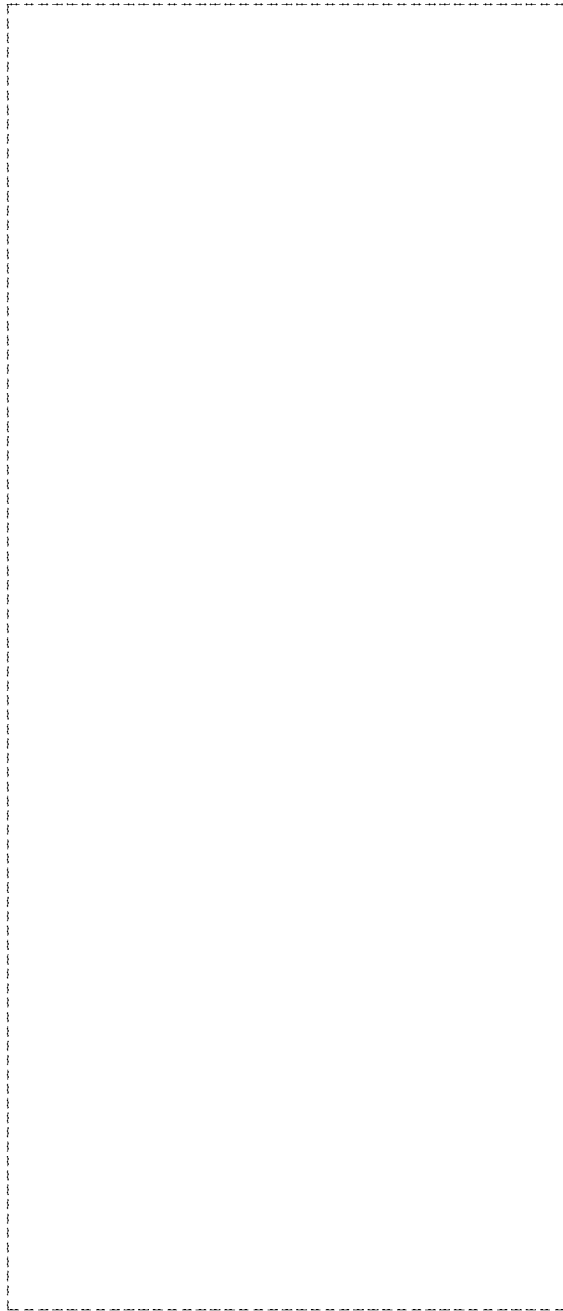


FIG. 6